

BEFORE THE FEDERAL MARITIME COMMISSION

CARLSTAR GROUP LLC f/k/a	)	
CARLISLE TRANSPORTATION	)	
PRODUCTS, INC. and CTP	)	
TRANSPORTATION PRODUCTS, LLC,	)	
<i>Complainants</i>	)	
	)	
v.	)	DOCKET NO. 17-08
	)	
UTi, UNITED STATES, INC.; UTi	)	
UNITED STATES, LLC; DSV	)	
AIR & SEA, INC.	)	
	)	
<i>Respondents.</i>	)	
_____	)	

PROPOSED JOINT DISCOVERY PLAN

Complainants The Carlstar Group LLC f/k/a Carlisle Transportation Products, Inc. and CTP Transportation Products, LLC (collectively, “Carlstar”), by counsel, and Respondents UTi, United States, Inc. UTi United States, LLC, and DSV Air & Sea, Inc. (collectively, “Respondents”), by counsel, hereby submit this Proposed Joint Discovery Plan in accordance with 46 C.F.R. § 502.141 and this Court’s Order of May 18, 2018.

1. Initial Disclosures: The parties exchanged the initial disclosures required by 46 C.F.R. § 502.141(b) on June 5, 2018.

2. Settlement Possibility/Alternative Dispute Procedures: At the present time, the parties have not reached a settlement, but the parties do not rule out the possibility of a future settlement.

3. Discovery Plan: Both the Complainants and Respondents agree to the following:

a. The parties agree that the scope of discovery shall be limited to those topics permissible under 46 C.F.R. § 502.141(e) and (f).

b. The parties anticipate that no one party will serve more than thirty (30) interrogatories, including parts and subparts, on any other party.

c. Complainants shall identify their expert witnesses, if any, on or before August 17, 2018.

d. Respondents shall identify their expert witnesses, if any, as well their rebuttal expert witnesses, if any, on or before August 24, 2018.

e. Complainants shall identify their rebuttal expert witnesses, if any, on or before August 31, 2018.

f. The mandatory disclosures required by 46 C.F.R. § 502.141(d) shall be provided on the dates set forth in subparagraphs 3(c) through 4(e) above. The parties will reimburse the opposing party's expert for deposition testimony time at reasonable hourly rates, but not for preparation or travel expenses associated with the deposition.

g. All discovery shall be completed by September 28, 2019.¹

5. All dispositive motions shall be filed and heard at a time and date scheduled with the Administrative Law Judge.

6. Additional Parties: The parties reserve the right to join additional parties only in accordance with the applicable rules.

7. Preservation: The parties discussed the disclosure of electronically stored information and agreed to retain all such relevant information for the duration of the case. The parties agree to retain and preserve all discoverable information until the conclusion of the case.

¹ The parties recognize that the Court has encouraged the parties to submit a proposed schedule that contemplates completion of discovery in 90 days in its May 18, 2018 Order. However, due to prior commitments and complications with clients' travel, the parties suggest that the close of discovery be completed in between the typical 150-day period and the Court's suggested 90-day period.

8. Discovery of Electronically Stored Information: The parties have discussed the production of electronically stored information (“ESI”) and have agreed that any production of ESI will be in load files containing single-image TIFF files and text files with load data and meta-data fields agreed to by the parties. In the event that the ESI exists only in a form readable via proprietary software, the producing party will identify the software by name, but is under no obligation to provide the requesting party access to use of that software in violation of the terms of use of any licensing agreements; it shall remain the sole obligation of the requesting party to obtain the necessary licenses or authorizations to view the native ESI data produced by the producing party.

9. Inadvertent Disclosure: The parties have agreed to the following “claw back” provision:

a. The unintentional production of any document or other information subject to protection by the attorney-client or other applicable privilege and/or the work-product doctrine or by another legal privilege protecting such information/documents from discovery shall not constitute a waiver of any privilege or other protection, provided that the producing party notifies the receiving party in writing of the unintentional production promptly after the producing party discovers the inadvertent production. The attorney-client privilege or work-product protection shall not be waived by inadvertent disclosure in this litigation.

b. Upon written notice of an unintentional production of a privileged document by the producing party or oral notice if notice must be delivered at a deposition, the receiving party must promptly first return the specified document and any hard copies the receiving party has (and destroy any copies which may remain) and may not use or disclose the information in any manner. To the extent that the producing party insists on the return or

destruction of electronic copies, rather than disabling the documents from further use or otherwise rendering them inaccessible to the receiving party, the producing party shall bear the costs of the return or destruction of such electronic copies.

c. To the extent that the information contained in a document subject to a claim has already been used in or described in other documents generated or maintained by the receiving party, then the receiving party will sequester such documents until the claim has been resolved. If the receiving party discloses the specified information before being notified of its inadvertent production, it must take reasonable steps to retrieve the information until the claim is resolved.

d. If any receiving party is in receipt of a document or information from a producing party that the receiving party has reason to believe was unintentionally produced by the producing party, the receiving party shall in good faith take reasonable steps to notify the producing party of the production of that document so that the producing party may make a determination of whether such document was unintentionally produced.

e. The party returning or destroying any unintentionally produced documents may move the Court for an order compelling production of some or all of the documents/information to be returned or destroyed, but the fact that the documents were produced inadvertently shall not be deemed to be a waiver of any privilege or protection, shall not be a basis for compelling production, and the motion shall not include or reference the privileged contents of the unintentionally produced documents.

10. Claims of Privilege or Protection of Trial Preparation Material: The parties anticipate the filing with the Court at a later time a Joint Protective Order for certain confidential, personnel, financial, and personal information and testimony.

The parties agree that they will assert claims of privilege/protection through the use of privilege logs, which shall describe the nature of the withheld document in a manner that, without revealing information itself privileged or protected, will enable other parties to assess the claim of privilege. Any document production from which responsive documents are withheld based on privilege shall be accompanied by such relevant privilege log or by a statement identifying the date certain by which the log will be produced, which shall not be more than 14 calendar days after the document production. No party will be required to put on the privilege log privileged documents that chronicle communications on or after August 31, 2017.

11. Email Service: The parties agree that discovery requests, objections, responses, or other papers, including attachments, not served via ECF may be served on all counsel of record via email. The parties agree that pleadings and papers served by ECF or by email shall be sufficient and there is no obligation or requirement to also serve by United States mail unless specifically requested by the receiving party.

/s/ Derek Swanson

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing documents upon all parties noted below by mailing via electronic mail a copy to each such person:

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Dated at Richmond, VA, this 18th day of June, 2018.

/s/ Derek Swanson
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